



- ☐ NEW
- ☐ RENEWAL
- ☐ REWRITE

CLUB # _____

MEMBERSHIP # _____

Address Line 1 _____

Address Line 2 _____

Phone _____

CityST@anytimefitness.com

MEMBERSHIP AGREEMENT

Name _____		SS# _____
Mailing Address _____		Driver's License # _____
City, State _____	Zip Code _____	Home Phone (_____) _____
Email _____		Cell Phone (_____) _____
Employer _____	Occupation _____	Work Phone (_____) _____
How did you hear about us? _____	Emergency Contact _____	Emergency Phone (_____) _____

MEMBERS WITH ACCESS TO CLUB FACILITY

Primary Member ❶ _____	☐ Tanning	☐ MALE ☐ FEMALE	Birthdate _____	Key # _____
Family Member ❷ _____	☐ Tanning	☐ MALE ☐ FEMALE	Birthdate _____	Key # _____
Family Member ❸ _____	☐ Tanning	☐ MALE ☐ FEMALE	Birthdate _____	Key # _____
Family Member ❹ _____	☐ Tanning	☐ MALE ☐ FEMALE	Birthdate _____	Key # _____

MEMBER ASSUMPTION OF RISK AND RELEASE

I understand the risk of injury from CLUB activities and using any CLUB equipment is significant, including the potential for permanent paralysis and death, I KNOWINGLY AND FREELY ASSUME ALL SUCH RISKS, both known and unknown. I acknowledge that this is an UNSUPERVISED FITNESS CENTER and I assume all risks associated with using exercise equipment and exercising alone without the aid and presence of CLUB staff on the premises. I understand that Anytime Fitness® is a trademark of Anytime Fitness, LLC. that has been licensed to this CLUB and that this CLUB is independently owned and operated by _____. I HEREBY RELEASE, INDEMNIFY, AND HOLD HARMLESS Anytime Fitness, LLC., ABC Financial Services, INC., AND THE OWNERS OF ALL CLUBS WITHIN THE ANYTIME FITNESS SYSTEM, as well as all sponsors and advertisers, and all owners and lessors of the premises of such clubs, and their respective officers, affiliates, agents and employees WITH RESPECT TO ANY AND ALL INJURY, DISABILITY, DEATH, LOSS OR DAMAGE to person or property that may arise out of or in connection with my use of any of the equipment or the facilities of the CLUB of any other Anytime Fitness club, or any incident that occurs while using such facilities, or otherwise related to my membership.

I expressly agree that this release is intended to be as broad and inclusive as permitted by applicable law and if a portion of this release is held invalid, the balance shall remain in full force and effect. This release shall apply to my heirs, assigns, personal representatives and any other next of kin. I understand that the CLUB is relying on this release in agreeing to enter into this Agreement.

I HAVE READ THE RELEASE OF LIABILITY AND ASSUMPTIONS OF RISK AGREEMENT, FULLY UNDERSTAND ITS TERMS AND THAT I HAVE GIVEN UP SUBSTANTIAL RIGHTS BY SIGNING IT, AND SIGN IT FREELY AND VOLUNTARILY WITHOUT ANY INDUCEMENT.

ADDITIONAL TERMS AND CONDITIONS – I hereby confirm that I am aware of and agree to the terms and conditions on both the front and back of this document.

Member Signature ❶ _____	Date _____
Member Signature ❷ _____	Date _____
Member Signature ❸ _____	Date _____
Member Signature ❹ _____	Date _____
Staff Signature _____	Date _____

AUTHORIZATION FOR PREAUTHORIZED PAYMENTS

I/We hereby authorize the Designated Billing Company selected by this CLUB to draw items (checks, electronic fund transfers, charge card) for the purpose of paying the membership dues, including any late fees or service fees, as well as other purchases, on the account indicated below.

NAME AS SHOWN ON ACCOUNT _____	
☐ CHECKING ☐ SAVINGS	
BANK NAME _____	
ROUTING # (9 DIGITS) _____	ACCOUNT # _____
CREDIT CARD # _____	EXP. DATE _____

Subject to the following conditions:

(1) The items shall be drawn on or about the date or dates of the Payment Plan. The transactions on your bank statement will constitute receipts for payment on your account.

(2) If the regular payments set forth on the Payment Plan should vary in amount, you are entitled to receive notice at least 10 days before the payment is due, when it will be made and how much it will be. However, by executing this preauthorization, you choose to instead get this notice only when the payment would differ by more than \$50.00 from the most recent payment.

(3) By executing this agreement, you acknowledge your awareness that certain disclosures required by the Electronic Funds Transfer Act and its regulations are available for your review at the Designated Billing Company's website: www.abcfinancial.com under Terms and Conditions.

(4) The privilege of making payments under this arrangement may be revoked by the Company if any item is not paid upon presentation.

(5) If this preauthorization payment arrangement is revoked for any reason, this does not release you from your obligation (Payment Plan).

(6) A service fee will be assessed and drafted for any check, draft, credit card, or order returned for insufficient funds or any other reason. A late fee will be assessed and drafted should any monthly payment become past due.

(7) This preauthorization payment arrangement shall apply to the following Applicant(s): _____

SIGNED _____

DATE _____

MEMBERSHIP TERM

MEMBERSHIP TERM IS _____ MONTHS,
BEGINNING ____/____/____, EXPIRING ____/____/____.

Membership Dues	\$ _____
Tanning Dues	\$ _____
Processing Fees	\$ _____
Anytime Health Membership Fee	\$ _____
Sales Tax	\$ _____
Total	\$ _____
Down Payment	\$ _____
Unpaid Balance	\$ _____

Down Payment (circle one) Cash Check MC / VISA / DIS / AMEX

Payment Plan (circle one) PIF Monthly Other _____

Monthly payments to be made by (circle one)
Checking / Savings MC / VISA / DIS / AMEX

Type of Membership _____

I agree to and understand the following payment plan(s):

PAYMENT PLAN (Membership Dues): \$ _____ PER MONTH

FOR _____ CONSECUTIVE MONTHS BEGINNING ____/____/____

PAYMENT PLAN (Tanning Dues): \$ _____ PER MONTH

FOR _____ CONSECUTIVE MONTHS BEGINNING ____/____/____

ANYTIME HEALTH MEMBERSHIP* (choose only one)

Monthly Membership: (recurring monthly access fee)
☐ Individual \$1.00 per month ☐ Family \$2.00 per month

*Anytime Health membership terms and conditions can be found at www.anytimehealth.com
Anytime Health* is the official wellness website for Anytime Fitness members. As part of your club membership, you will have full access to online tools and information that will help you achieve your fitness, diet, and wellness goals. You will also have access to an online community where you can get expert answers to your questions and support from a global network of members.

CLUB ENHANCEMENT FEE

The purpose of the Club Enhancement Fee is to provide for the maintenance and improvement of the equipment and services offered. This fee of \$00.00 will be collected annually on Month 00th.
MEMBER's Initials _____

AUTO RENEWAL PROGRAM

Provided that MEMBER is not in default of this agreement and subject to the terms and conditions hereof, the membership will automatically renew at the rate indicated below (which rate also includes the Anytime Health membership fee). Renewal terms may be cancelled at any time provided a 30-day written notice is delivered to the CLUB's address or their designated billing company. It is also understood that the CLUB has the option to increase monthly renewal dues without notice during any renewal period not to exceed \$ _____ per month.

MONTHLY DUES: \$ _____ PER MONTH FOR FUTURE AUTOMATIC RENEWAL.
MEMBER's Initials _____

DESIGNATED BILLING COMPANY

ABC Financial Services, Inc.
PO Box 6800 • Sherwood, AR 72124 • 1-888-827-9262
For all billing inquiries, please contact ABC Financial Services and refer to your CLUB and membership number.



ADDITIONAL TERMS AND CONDITIONS

DEFAULT AND LATE PAYMENTS: Should you default on any payment obligation as called for in this agreement, the CLUB will have the right to declare the entire remaining balance due and payable and you agree to pay allowable interest, and all costs of collection, including but not limited to collection agency fees, court costs, and attorney fees. A default occurs when any payment due under this agreement is more than ten days late. Should any monthly payment become more than ten days past due, you will be charged a late fee. An additional service fee will be charged for any check, draft, credit card, or order returned for insufficient funds or any other reason. If the MEMBER is paying monthly dues by Electronic Funds Transfer (EFT), the CLUB's Designated Billing Company ABC Financial Services, Inc. reserves the right to draft via EFT all amounts owed by the MEMBER including any and all late fees and service fees. Subject to appropriate State and Federal Law. (NOTE: MEMBERS paying monthly dues by EFT are subject to \$10.00 per month increase of monthly dues if EFT payment is stopped or changed to a coupon book. This will not affect any other provisions of this agreement.)

SALES TAX: Notwithstanding any other provisions of this Agreement, you understand and agree that the amount of your monthly membership dues is based on current sales tax rates and to the extent such rates should increase during your membership, the CLUB has the right to increase your monthly membership dues by the amount of such increase. If you have requested the privilege of paying your monthly dues by pre-authorized electronic funds transfer, the monthly amount so transferred will be adjusted to reflect any increase in the sales tax rate.

RIGHT TO CHANGE DESIGNATED BILLING COMPANY: The CLUB hereby reserves the right to change the Designated Billing Company at their discretion and without warning. If such a change is made, the full terms and conditions of this agreement will continue to apply and you agree to authorize the new Designated Billing Company to continue drafting your account.

NOTICE: ANY HOLDER OF THIS AGREEMENT IS SUBJECT TO ALL CLAIMS AND DEFENSES WHICH THE DEBTOR COULD ASSERT AGAINST THE SELLER OF GOODS OR SERVICES OBTAINED PURSUANT HERETO OR WITH THE PROCEEDS HEREOF, RECOVERY HEREUNDER BY THE DEBTOR SHALL NOT EXCEED AMOUNTS PAID BY THE DEBTOR HEREUNDER.

MEMBERSHIP FREEZE POLICY: If you have a term membership (i.e. 12-month, etc.) you may freeze time on your membership for a medical reason. Freezes can be from 30 to 90 days at a time. We may ask for documentation to verify your situation. Freezing time on your membership does not stop your membership payments. You are still liable for your original payment schedule. Once you resume any usage of the CLUB, the freeze will terminate. Time of any freeze will be credited to the end of your membership's original term.

MAINTENANCE OF FACILITIES: The CLUB may be temporarily closed for periods of up to 2 weeks each year for maintenance purposes. The CLUB reserves the right to add an annual facility maintenance charge of up to but no greater than the equivalent of 1 month's membership dues. If a Facility Maintenance Charge is implemented in the future, you will be given a minimum of a 60 day notice of the amount owed and due date. You authorize the Designated Billing Company to automatically draft this amount along with your regular membership dues.

MEMBER OBLIGATIONS: (1) MEMBER agrees to abide by all CLUB policies, follow the directions of the staff regarding safety and security issues, and to treat the staff and other MEMBERS with courtesy. (2) MEMBER agrees to pay monthly dues on time, including notifying the CLUB promptly if banking or credit card information used for automatic payment changes, or to be charged a declined payment fee and/or a late fee per delinquent payment. (3) MEMBER agrees to pay all costs of collection incurred by the holder of this agreement if this account becomes more than 60 days past due. (4) MEMBER agrees to continue to fulfill the financial obligation of this agreement, except as allowed below.

MEMBERS' RIGHT TO CANCEL: If you wish to cancel this contract, you may cancel by delivering or mailing a written notice to the club. The notice must say that you do not wish to be bound by the contract and must be delivered or mailed before midnight of the third business day after you sign this contract. The notice must be delivered to: ABC Financial Services Inc., P.O. Box 6800, Sherwood, AR 72124. If you cancel, the club will return, within ten days of the date on which you give notice of cancellation, any payments you have made.

CANCELLATION POLICIES: (1) If during the original term of this contract you relocate more than a 15 mile radius from the CLUB, you may cancel this contract by providing a 30-day written notice and proof of relocation. Any pre-paid dues remaining will be refunded, except for a cancellation fee not to exceed \$50. Acceptable proof of relocation includes a newly issued Driver's License with an address different from the one you signed up with or shown on your previous license or a utility bill in your name with your new address. (2) If you die or become totally and permanently disabled, you or your estate may cancel this contract by providing a written request and certifiable proof of disability or death. For permanent disability, your doctor must provide certification of the disability and state that you are unable to use any of the Anytime Fitness facilities. Any pre-paid dues remaining will be returned but no cancellation fee will be charged. (3) The CLUB retains the right to cancel or suspend the membership of any person for any reason. If such cancellation or suspension is made due to violation of the CLUB policies, violation of terms of this contract, or due to damage rendered by you or your guests, you will remain responsible for the financial obligations of this contract as well as a \$50 cancellation fee. In the case where the facility or its contents are damaged, you will furthermore be responsible for the repair or replacement thereof. (4) If the CLUB goes out of business or moves its facilities more than 5 miles from its present location, Buyer may cancel by written notice. Any cancellation under this subsection will receive a pro-rata refund of any prepayments. Any payments due prior to cancellation taking effect will still be due and payable. Your account must be current before any cancellation will take effect. To cancel for any of the above reasons, send or deliver a written notice to the CLUB or to the Designated Billing Company.

SUMMARY OF MEMBERSHIP POLICIES

1. MEMBER, by executing this Agreement, does hereby join the CLUB and such membership entitles the MEMBER to use the facilities. The MEMBER is entitled to use the facility only and MEMBER shall be required to provide MEMBER's own athletic equipment and clothes. The MEMBER will be subject to additional charges for and including, but not limited to, the use of tanning beds. The MEMBER may also be charged for purchases through the use of their key or account number.
2. MEMBER must present upon entering the CLUB his/her membership card. MEMBER agrees that MEMBER may be denied access to the CLUB without his/her membership card.
3. MEMBER agrees to abide by all membership regulations of the CLUB. MEMBER agrees to comply with stated and customary rules for participation and use of equipment. Unless cancelled as provided in this Agreement, MEMBER will be responsible for all payments due and owing under this Agreement, even if MEMBER does not use the CLUB's facilities and services. However, in the event of death or disability, liability for fees will terminate as of the date of death or disability. If the CLUB becomes temporarily unavailable due to an event such as fire, flood, loss of lease, or the like, we will extend the MEMBER's membership privileges for the period the facilities were unavailable.
4. If MEMBER violates this Agreement and the terms contained therein or any of the rules and regulations for use of the facility, the CLUB may suspend the MEMBER's right to use the facility until such time as the MEMBER provides the CLUB with reasonable assurance of future compliance. During the period of any such suspension, the MEMBER shall not be entitled to a credit for any prepayment of dues or other fees due or paid pursuant to this Membership Agreement. In the event MEMBER continues to violate the terms of this Agreement or the rules and regulations governing the facility, the MEMBER's membership may be terminated by the CLUB, and the balance of the contract declared due and payable in full immediately.
5. MEMBER agrees that he/she shall not engage in any type of commercial or business activity while using the facilities. MEMBER shall not act as a trainer for any other MEMBERS or guests and any acts which constitute such business activities are strictly forbidden. If MEMBER engages in such commercial or business activities MEMBER's membership shall be subject to immediate cancellation and the balance of the contract declared due and payable in full immediately.
6. MEMBER agrees that MEMBER shall abide by the CLUB dress code at all times while in the facility. Do not wear blue jeans or any pants/shorts that have blue jean type seams or rivets. Flip-flops or bare feet are not allowed in the CLUB.
7. MEMBER agrees that MEMBER shall not use loud or profane language upon the CLUB premises nor shall MEMBER molest, badger, assault or harass other CLUB MEMBERS, guests or employees. If MEMBER engages in such behavior, MEMBER's membership shall be subject to immediate cancellation, and the balance of the contract declared due and payable in full immediately.
8. MEMBER understands that the CLUB prohibits the use of any drugs or steroids and MEMBER agrees not to use any drugs or steroids on the CLUB premises. MEMBER acknowledges and is aware that steroids can cause numerous physical, mental, and emotional problems relating to physical maturity and growth and may cause heart disease, strokes, liver dysfunction, sterility and infertility, and many other adverse health problems. MEMBER recognizes and acknowledges that there are serious criminal and civil penalties for the illegal possession, sale, use, trading, or exchange of steroids and no such activity is allowed upon CLUB premises.
9. MEMBER agrees that if MEMBER fails to use the CLUB facilities that shall not release the MEMBER from the obligation to make all payments required by the terms of this Membership Agreement.
10. Arbitration: All disputes (except small claims under \$1,000) will be settled by binding arbitration before a single arbitrator under the authority of the Federal Arbitration Act, conducted by and in accordance with the rules and procedures of the American Arbitration Association. The arbitration will take place in the county in which this CLUB is located unless otherwise agreed. The decision of the arbitrator will be final and binding on all parties and may be enforced by a judgment entered upon the arbitration award by any state or federal court in this state.
11. Should this Agreement be placed in the hands of an attorney for the violation of any provision contained herein, the parties agree the CLUB shall be entitled to recover all costs and expenses resulting there from, including a reasonable amount as attorney's fees.
12. The parties hereby agree that the whole agreement between the parties relating to the subject matter hereof is contained in this Agreement and shall supersede any prior understandings, arrangements, commitments, or undertakings of the parties, whether written or oral, express, or implied.
13. This Agreement may not be amended or modified except by an instrument in writing executed by the parties hereto.
14. MEMBER authorizes the CLUB, ABC Financial Services, Inc. and Anytime Fitness, LLC. to contact them by e-mail or telephone. Subject to applicable law, Member agrees that ABC Financial Services, Inc. may contact Member at any mailing address, phone number or e-mail address set forth on the face of this agreement, or any other address subsequently provided to, or obtained by, ABC Financial Services.
15. MEMBER has the option to use other Anytime Fitness® CLUBs. If over a period of 60 days, Anytime Fitness, LLC. determines that MEMBER primarily uses another Anytime Fitness® facility more than this CLUB, MEMBER may be transferred to that facility upon written notice to MEMBER, and MEMBER will then be required to pay the membership dues of that facility which may be more than the dues payable under this Agreement.
16. The CLUB retains the right to modify these policies without warning. Reasonable rules and regulations may be posted in the Membership Guide or at the CLUB from time to time and all MEMBERS shall be subject to strict compliance therewith. The most current copy of the Membership Guide can be found at the CLUB or at the CLUB's website.

SAFETY NOTICES

- This facility is under 24-hour recorded video surveillance, which may be retained by the CLUB for subsequent review, and MEMBER access card usage is logged.
- MEMBER may not bring in guests at any time without the prior written consent of the facility staff. Furthermore, if this policy is violated, at the sole discretion of the facility management, the MEMBER may be charged a guest fee and/or have their membership suspended or canceled, the balance of the contract declared due and payable in full immediately, and be assessed a penalty of up to \$250.00. MEMBER may not allow anyone else to use their access card and must alert the CLUB immediately if it is lost or stolen. Violating this policy carries the same penalties as violating the guest policy.
- MEMBERS who do not have their key access card will not be allowed into the facility during non-staffed hours, nor should they enter the facility during unstaffed hours.
- Personal training services provided in this facility may be provided either by employees of the CLUB or by independent contractors operating their own business who are retained by the CLUB. Regardless, all payments for personal training services are to be made to the CLUB, who will pay the trainers as the services are provided.
- MEMBER has access to a free orientation to the facility and the proper use of all equipment. It is the MEMBER's responsibility to request this orientation.
- It is MEMBER's responsibility to wipe down all equipment after each use and re-rack the weights they use.
- MEMBER is required to use the safety features of the equipment. If you are unsure of how to use a machine, you should obtain instructions from the staff or personal trainers.
- Each MEMBER is responsible for understanding how to operate the panic alarms and agree to use them only in case of an emergency.
- Horseplay, vulgar language, abuse of the equipment, working out while intoxicated, or other inappropriate behavior will not be tolerated and may result in the suspension or cancellation of the MEMBER's membership, and the balance of the contract being declared due and payable in full immediately.
- Cell phones are not permitted in the cardio area. Photography and/or videography are not allowed anywhere in the CLUB.
- Age Requirements – Persons under the age of 18 are not permitted in the CLUB.

TANNING, VENDING, & PRODUCT PURCHASES

- If the MEMBER elects to make use of the CLUB tanning facilities, he/she does so at their own risk.
- If the MEMBER has not purchased a tanning package, they will automatically be charged a per session rate determined by the CLUB.
- If the Primary MEMBER or any of the Additional MEMBERS on this agreement choose to utilize the tanning beds on a per session basis, vending machines or purchase products directly from the CLUB using their assigned Key, the Primary MEMBER hereby agrees to have the cost of such purchases, including Sales Tax, added to the next monthly draft in addition to their membership dues.

TANNING AGREEMENT

- DANGER – ULTRAVIOLET RADIATION
- Follow instructions. Avoid overexposure. As with natural sunlight, overexposure can cause eye and skin injury and allergic reactions. Overexposure may cause premature aging of the skin and skin cancer. Wear protective eyewear. FAILURE TO WEAR PROTECTIVE EYEWEAR MAY RESULT IN SEVERE BURNS OR LONG-TERM INJURY TO THE EYES.
- Medications or cosmetics may increase your sensitivity to ultraviolet radiation. Consult a physician before using sunlamps if you are using medications or have a history of skin problems or believe yourself especially sensitive to sunlight. If you do not tan in the sun, you are unlikely to tan from the use of this product.
- I understand that there is a risk to tanning. I have been shown proper tanning procedures. I have read this warning.